

of March, nineteen hundred and thirty-four" the words "thirty-first day of March, nineteen hundred and thirty-five":

Provided that no abatement exceeding five per cent. shall be made under the said Act from any pay in so far as it is payable in respect of any period after the thirty-first day of March, nineteen hundred and thirty-three.

2. This Act may be cited as the Indian Pay (Temporary Abatements) Act, 1934, and shall be construed as one with the Indian Pay (Temporary Abatements) Acts, 1931 and 1933, and those Acts and this Act may be cited together as the Indian Pay (Temporary Abatements) Acts, 1931 to 1934.

Short title,
construction
and citation.

CHAPTER 9.

An Act to amend section twenty of the Mining Industry Act, 1920, and the enactments amending that section. [28th March 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The period during which payments are to be made to the fund constituted under the principal section (hereafter referred to as "the fund") shall be extended by sixteen years, and accordingly that section (as amended by the Mining Industry (Welfare Fund) Act, 1931) shall have effect as if in subsection (2) thereof for the words "fifteen years" there were substituted the words "thirty-one years."

Continu-
ance of pay-
ments to
the fund.
21 & 22
Geo. 5. c. 23.

2.—(1) The sum payable into the fund under the principal section as respects the output of any coal mine during the year nineteen hundred and thirty-two and subsequent years shall be a sum equal to one halfpenny a ton (instead of one penny a ton) of the output of the mine.

Reduction
of sums
payable to
fund and
recovery
thereof.

(2) Where any person has paid into the fund as respects the output of a mine during the year nineteen hundred and thirty-two an amount in excess of the sum payable under this section, he shall be entitled to deduct the amount so paid in excess from the sum (if any) payable by him as respects the output of that or any other mine during the year nineteen hundred and thirty-three, or, if no sum is so payable or if the said amount exceeds the sum so payable, he shall be entitled to be repaid the said amount or the amount by which it exceeds the sum so payable, as the case may be, out of the fund.

(3) Proceedings by the Board of Trade for the summary recovery as a civil debt of any sum payable into the fund as respects the output of a mine during the year nineteen hundred and thirty-two may, notwithstanding any enactment to the contrary, be commenced at any time before the expiration of three months from the commencement of this Act.

(4) The sum payable into the fund under the principal section as respects the output of a coal mine during any calendar year shall be and shall be deemed always to have been, payable by the person being the owner of the mine at the end of that year :

Provided that in a case where different persons have been owners of the mine for different parts of the year, the Board of Trade shall have, and shall be deemed always to have had, power to apportion the said sum among those persons according to the output of the mine during the part of the year for which they were owners thereof, and the amount so apportioned to any person shall be payable by him accordingly.

Purposes for
which fund
to be
applied.
16 & 17
Geo. 5. c. 28.

3.—(1) The purposes for which the proceeds of the royalties welfare levy are required to be appropriated under section seventeen of the Mining Industry Act, 1926, shall include the provision of such accommodation and facilities for workers in or about coal mines as the Miners Welfare Committee think can be conveniently and properly combined with accommodation and facilities for taking baths and drying clothes.

(2) Until the Board of Trade otherwise direct, the Miners Welfare Committee shall appropriate (in priority to any other payments) out of the sums paid into the fund under subsection (2) of the principal section as respects

the output of coal mines during any calendar year, commencing with the year nineteen hundred and thirty-four—

(a) for the purposes for which the proceeds of the royalties welfare levy are required to be appropriated, such sum as will, together with the proceeds of the said levy for the financial year ending next after the end of that calendar year, amount to three hundred and seventy-five thousand pounds; and

(b) for the purpose of promoting research into methods of improving the health and safety of workers in or about coal mines, the sum of twenty thousand pounds;

and notwithstanding anything in the proviso to subsection (3) of the principal section no part of the sums appropriated by virtue of this subsection shall be required to be allocated for the benefit of any particular district.

(3) Nothing in the foregoing subsection shall affect the power of the Miners' Welfare Committee to apply for the purposes therein mentioned any other sums paid into the said fund, but, where there is established for any district a committee or body which appears to the Board of Trade to represent the interests of the owners of, and workers in and about, coal mines in that district, no sums required by the said proviso to be allocated for the benefit of that district shall be applied for those purposes, except with the approval in writing of that committee or body.

(4) For the purpose of subsection (1) of the principal section (which provides that the fund may be applied for purposes connected with the social well-being, recreation and conditions of living of workers in or about coal mines), the expression "workers in or about coal mines" shall include, and shall be deemed always to have included—

- (a) persons who have ceased to be employed as such workers by reason of age or disability; and
- (b) persons who, having ceased to be employed as aforesaid for any reason, have not subsequently changed their occupation; and
- (c) the dependants of such workers and of such persons as aforesaid,

and the purposes for which the fund may be applied shall include, and shall be deemed always to have included, the education of such workers and of such persons as are mentioned in paragraphs (b) and (c) of this subsection but shall not include the payment to any persons of pensions or other similar payments, not being payments by way of temporary assistance.

Short title,
citation, in-
terpretation
and extent.

4.—(1) This Act may be cited as the Mining Industry (Welfare Fund) Act, 1934, and this Act and the Mining Industry Acts, 1920 to 1931, may be cited together as the Mining Industry Acts, 1920 to 1934.

(2) In this Act—

10 & 11
Geo. 5. c. 50.

(a) the expression “the principal section” means section twenty of the Mining Industry Act, 1920, as amended by any subsequent enactment including this Act;

(b) the expression “the Miners Welfare Committee” means the committee constituted under the principal section;

(c) the expressions “output” and “owner” have the same meanings as in the principal section.

(3) This Act shall not extend to Northern Ireland.

CHAPTER 10.

An Act to provide financial facilities in connection with the construction of large vessels for the North Atlantic shipping trade, and in connection with the merger of certain shipping companies in respect of their interests in that trade; and for purposes connected with the matters aforesaid. [28th March 1934.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to
Treasury

1.—(1) The Treasury may from time to time on such terms as they think fit advance out of the Con-